

**UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.**

**Before Charles E. Bullock
Administrative Law Judge**

In the Matter of

**CERTAIN PORTABLE POWER STATIONS
AND PACKAGING THEREFOR**

Inv. No. 337-TA-563

**COMMISSION INVESTIGATIVE STAFF'S
RESPONSE TO MOTION FOR AN ORDER TO SHOW CAUSE**

I. INTRODUCTION

The Commission Investigative Staff ("Staff") respectfully submits this response to Complainant Roadmaster's Motion for an Order to Show Cause and Default Judgment. (Motion Docket No. 563-1). For the reasons set forth below, the Staff supports Complainant's motion for an order directing Respondent to show cause why it should not be found in default. However, the Staff reserves the right to take a position as to the sufficiency of any showing that Respondent may make.

II BACKGROUND

In its Complaint, filed on February 8, 2006, Complainant Roadmaster (USA) Corp. alleges that Respondent Sinochem Ningbo, Ltd. ("Sinochem Ningbo") has violated Section 337 in the importation into the United States, sale for importation, and sale after importation of certain portable power stations and packaging therefor by reason of (1) infringement of U.S. Design Patent No. D469,739; (2) infringement of U.S. Trademark Registration No. 2,594,538;

and (3) infringement of U.S. Copyright Registration No. VA-1-261-495. A supplement to the Complaint was filed on February 27, 2006. On March 7, 2006, the Commission voted to institute an investigation based on the Complaint, as supplemented, and the Notice of Investigation was published in the Federal Register on March 14, 2006. *See 71 Fed. Reg.* 13166 (March 14, 2006).

III. DISCUSSION

Commission Rule 210.16(a)(1) states that “[a] party shall be found in default if it fails to respond to the complaint and notice of investigation in the manner prescribed in § 210.13 or § 210.59(c), or otherwise fails to answer the complaint and notice, and fails to show cause why it should not be found in default.” 19 C.F.R. § 210.16(a)(1). When a respondent fails to respond or appear, “a party may file a motion for . . . an order directing that respondent to show cause why it should not be found in default. If the respondent fails to make the necessary showing, the administrative law judge shall issue an initial determination finding the respondent in default.” 19 C.F.R. § 210.16(b)(1).

On March 10, 2006, the Secretary served copies of the Notice of Investigation and Complaint upon Respondent Sinochem Ningbo.¹ The docket sheet maintained by the Secretary contains no indication that the Complaint was returned as undelivered. (*See Ex. A*). However, Sinochem Ningbo did not respond to the Complaint and Notice of Investigation. On March 14,

¹ Complainant states in one place in its motion that the Notice and Complaint were served on March 10, 2006, and states in another place that the Notice and Complaint were served on March 14, 2006. (*See Compl. Mem.* at 1-2). According the records maintained by the Secretary, the correct date is March 10, 2006. (*See Exhibit A hereto*).

2006, the Judge issued Order No. 2, in this investigation, directing the parties to submit discovery statements no later than April 17, 2006. Respondent Sinochem Ningbo did not respond to this Order and did not submit a discovery statement. The Staff has had no communications with Sinochem Ningbo.

The Staff is therefore of the view that the conditions of Rule 210.16(a)(1), 19 C.F.R. § 210.16(a)(1), are satisfied. Respondent Sinochem Ningbo has not responded to the Complaint and Notice of Investigation, has not otherwise appeared, and has not demonstrated that it intends to participate in the investigation. Sinochem Ningbo should therefore be directed to show cause, by a date chosen by the Judge, why it should not be held in default. *See, e.g., Certain Tadalafil or Any Salt or Solvate Thereof and Products Containing Same*, Inv. No. 337-TA-539, Order No. 4 (Aug. 8, 2005). If Sinochem Ningbo responds to the pending motion or to any Order to Show Cause, the Staff reserves the right to take a position as to the sufficiency of any response. However, if Sinochem Ningbo fails to make a submission by the required date, then it should be held in default.²

² Complainant's motion also contains a request that a remedy be entered. (*See* Compl. Mot. at 1). The Staff notes that remedy can be addressed only after a default is issued and that the request is therefore premature.

IV. CONCLUSION

For all of the foregoing reasons, the Staff believes that Respondent Sinochem Ningbo should be ordered to show cause why it should not be found in default

Respectfully submitted,

/s/ David O. Lloyd

Lynn I. Levine, Director
David O. Lloyd, Investigative Attorney

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May 19, 2006

EXHIBIT

A

ALL-STATE® INTERNATIONAL

SUBJECT Portable Power Stations and

Accessories Therefor

RECEIVED
OFC OF THE SECRETARY
US INTL TRADE COMM

DATE COMPLAINT SERVED

3/10/06

2006 MAR 14 PM 2:17

RESPONSE DUE:

337-563

STATE SIDE

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RETURN TO THE
SECRETARY'S OFFICE

RECORD OF
CERTIFIED MAIL
OR

REGISTERED MAIL

CERTIFIED OR REGISTERED NO.	NAME AND ADDRESS	DATE COMPLAINT RECEIVED BY PARTY	DATE RESPONSE RECEIVED BY COMMISSION	DATE PACKAGE RETURNED
R 806 575 742	Sinochem Ningbo, Ltd. 21 JiangXia Street Ningbo 315000 China			

EXHIBIT

A

ALL-STATE® INTERNATIONAL

CERTIFICATE OF SERVICE

The undersigned certifies that on May 19, 2006, he caused the foregoing **COMMISSION INVESTIGATIVE STAFF'S RESPONSE TO MOTION FOR AN ORDER TO SHOW CAUSE** to be filed with the Secretary (in electronic format), served by hand upon Administrative Law Judge Charles E. Bullock (2 copies), and served upon the parties (1 copy each) in the manner indicated below:

For Complainant Roadmaster (USA) Corp.:

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